

Ala. Code 1975, § 13A-11-153(1)

Causing the Loss of an Animal or Crop From an Animal or Crop Facility

The defendant is charged with causing the loss of an animal or crop from an animal or crop facility.

A person commits the crime of causing the loss of an animal or crop from an animal or crop facility if he/she intentionally releases, steals, destroys, demolishes, obliterates, or otherwise causes loss of any animal or crop from an animal or crop facility without the consent of the owner.

To convict, the State must prove beyond a reasonable doubt each of the following elements:

- (1) The defendant released, stole, destroyed, demolished, obliterated, or otherwise caused loss of any animal or crop from an animal or crop facility **(name)**;
- (2) The defendant did so without the consent of the owner **(name)**;
- (3) The defendant acted intentionally; **(AND)**
- (4) The loss was **[read as appropriate]: (\$250 or more/under \$250)**.

An *animal* is every living creature, domestic or wild, with the exception of man and animals used for illegal gaming purposes. [13A-11-152(1)]

Crops are any shrub, vine, tree, seedling, shoot, slip, or other plant undergoing experimentation or otherwise capable of producing food, fiber, lawful or legal medicines, nursery stock, floral products, or aesthetic beauty. [13A-11-152(4)]

An *animal or crop facility* is any facility engaging in scientific research, education, or agricultural production of or involving the use of animals or crops including any organization with the primary purpose of representing livestock or crop production or processing; any organization with a primary purpose of promoting or marketing livestock or crops; any organization with a primary purpose of promoting or marketing livestock or crop products or materials; any person licensed to practice veterinary medicine; any person licensed to apply chemical applications not limited to pesticides, insecticides, rodenticides, or herbicides; any organization with a primary purpose of representing any of the above; the owner, operator, and employees of any animal or crop facility; and any vehicle, building, greenhouse, structure, laboratory, pasture, field, paddock, pond, impoundment, or premises where animals or crops are located. [13A-11-152(2)]

A *person* is a human being, and where appropriate, a public or private corporation, an unincorporated corporation, a partnership, a government or a governmental

instrumentality, or a private organization, association, coalition, federation, and its officers or spokespersons. [13A-11-152(5)]

A person acts *intentionally* with respect to a result or to conduct described by a statute defining an offense, when his/her purpose is to cause that result or to engage in that conduct. [13A-2-2(1)]

If you find from the evidence that the State has proved beyond a reasonable doubt each of the elements of causing the loss of an animal or crop from an animal or crop facility, then you shall find the defendant guilty of causing the loss of an animal or crop from an animal or crop facility.

If you find that the State has failed to prove beyond a reasonable doubt any one or more of the elements of causing the loss of an animal or crop from an animal or crop facility, then you cannot find the defendant guilty of causing the loss of an animal or crop from an animal or crop facility.

[If lesser-included offenses are included, the Court should instruct on those offenses at this point.]

Use Notes

Any person who violates this section shall be guilty of a Class C felony if the loss is \$250 or more; otherwise it is a Class A misdemeanor. [13A-11-154]

[Approved 7-22-17.]